

26STCV23442 26STCV23442

County: los-angeles

Division: Civil Law and Motion

Department: 311

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Case Number: 26STCV23442 Hearing Date: September 4, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

26STCV23442

B.H,

et al. vs GOVIND JIVANDA SETH, M.D, et al.

September

4, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFFS' MOTION FOR LEAVE PERMITTING PLAINTIFFS TO PROCEED

BY INITIALS.

RULING:

The Court grants the Motion.

Plaintiffs are permitted
to proceed anonymously during this entire case.

Plaintiffs to give
notice.

ANALYSIS:

The Court incorporates by
reference the Minutes entered August 21, 2026, continuing the matter for a
substantive Opposition, ordering records sealed, and stating some applicable
law.

Presently, the Court
addresses the Opposition filed on August 25, 2026 by MAXIMUS HEALTH, INC. and
MAXIMUS MEDICAL CA, P.C. (Defendants), summarizing their positions, as follows:

“Pseudonymous
litigation is permitted only in the rarest of circumstances and only where the
moving party demonstrates both a substantial probability of prejudice to an
overriding interest and the absence of less restrictive alternatives.
Plaintiffs have established neither.

Plaintiffs
rely on inapposite authorities and invoke private and sensitive information
that they have already disclosed expressly and publicly in the Complaint. They
offer no evidence that associating their
identities with that information would cause substantial harm. Moreover,
Plaintiffs elected to assert public-facing consumer protection claims and seek
injunctive relief and punitive damages. The public's interest in knowing who
seeks such relief is not overcome by Plaintiffs' conclusory concern that their
names may be associated with information they have already placed in the public
record.

(Opposition, 2:1-10.)

Protective Orders and

redacting are not necessarily acceptable substitutes for anonymous complaints. Sealing can occur in conjunction with an Anonymity order. "In most cases, a party seeking to proceed pseudonymously should provide evidence supporting his or her motion to allow the trial court to make '[e]xpress factual findings' on the matter. (Cal. Rules of Court, rule 2.550(d).) And to enable the court to conduct a recusal check, the party seeking to use a pseudonym should provide the parties' real names under seal." (Roe v. Smith (2025) 116 Cal.App.5th 227, 248.)

Parties' protective

orders may not avoid privacy concerns where privacy interests outweigh countervailing interests, and it would not be the most minimum intrusion needed. (Planned Parenthood Golden Gate

v. Superior Court (2000) 83 Cal.App.4th 347, 369, disapproved on other grounds by Williams v. Superior Court (2017) 3 Cal.5th 531, 557.)

Opinions reasoned that

third party privacy rights were adequately protected by orders requiring that identities be redacted from the requested documents, where disclosed

information could not lead to identifications. (See Padron v. Watchtower Bible & Tract Soc'y of New York, Inc.

(2017) 16 Cal.App.5th 1246, 1270-1271; Doe

v. United States Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1438 ["failed to provide any explanation how such information would readily identify...."].)

Courts should consider

applicable factors in deciding whether a party can proceed under a fictitious name in a civil case including, "the overriding interest test and take into account all considerations relevant to determining whether the public's right of access is outweighed by the employee's privacy interest...." (Department of Fair Employment & Housing v. Superior Court (2022) 82 Cal.App.5th 105, 110-113.) (Underscoring added.) "Before

allowing a party to litigate under a pseudonym, the trial court must expressly find facts establishing an overriding interest that overcomes the right of public access to court records, and find a substantial probability that interest will be prejudiced if a pseudonym is not used." (Roe v. Smith (2025) 116 Cal.App.5th 227, 247.) "[A] statute must specifically permit a plaintiff to sue under a pseudonym for a plaintiff to do so without court authorization. If sensitive or confidential documents or information might be revealed in the litigation, a party can seek a protective order or request that documents be sealed." (Santa Ana Police Officers Assn. v. City of Santa Ana

(2025) 109 Cal.App.5th 296, 307.)

Preliminarily, the Court

notes that in mentioning genetics and asserting that the Complaint already made the information public, the Opposition fails to include related law supporting anonymity and sealing. "Contentions are waived when a party fails to support them with reasoned argument and citations to authority." (Moulton Niguel Water Dist. v. Colombo (2003) 111 Cal.App.4th 1210, 1215.)

One concern is avoiding

employers' intentional or inadvertent obtaining of employee genetic information. (See, e.g., Williams v. Graphic Packaging Int'l, Inc. (6th Cir. 2019) 790 F. App'x 745, 754.) Federal government has recognized, " 'the vast amount of sensitive information that can be mined from a person's DNA and the very strong privacy interests that all individuals have in this information.' " (United States v. Mitchell (3d Cir. 2011) 652 F.3d 387, 407.) Also, it has taken steps to avoid putting "private genetic or medical information" in its database. (See United States v. Kriesel (9th Cir. 2013) 720 F.3d 1137, 1140.) Analogously, "[w]hether the DNA testing procedures pass muster under the Fourth Amendment should be determined by balancing their intrusion on the individual's privacy interests against their promotion of legitimate governmental interests." (People v. King (2000) 82 Cal.App.4th 1363, 1377.)

Here, if the Complaint

content together with Plaintiffs' identities were left open to the public, genetic information could spread to unauthorized recipients.

Further, Plaintiffs have

taken steps to keep private Complaint content confidential, by requesting anonymity and sealing. Waivers of constitutional rights, including privacy, are not lightly found, but are possible, depending on the circumstances. (Heda v. Superior Court (1990) 225 Cal.App.3d 525, 530.) And the concept of waiver for purposes of preparing a defense, should not be conflated with keeping information nonpublic. Implied "waiver is established by a showing that 'the client has put the otherwise privileged communication directly at issue and that disclosure is essential for a fair adjudication of the action.'" (Kaiser Found. Hosps. v. Superior Court (1998) 66 Cal.App.4th 1217, 1226.)

Privacy interests in

physician's files broadly may involve information about symptoms, family history, diagnoses, tests, and treatment, et cetera. (County of Los Angeles v. Superior Court (2021) 65 Cal.App 5th 621, 641.)

The Confidentiality of Medical Information Act (CMIA), and the Health Insurance Portability and Accountability Act of 1996 (HIPAA), require a court order for disclosures to third parties without patient authorization. (Snibbe v. Superior Court (2014) 224 Cal.App.4th 184, 197-198 [citing Civ. Code, §§ 56.10, subds. (a), (b)(1); and 45 C.F.R. § 164.512(e)(1)(i)].)

“[T]he federal and state Constitutions protect the right of sexual privacy,...” (Winfred D. v. Michelin No. Amer., Inc. (2008) 165 Cal.App.4th 1011, 1040.)

Here, the Court finds that Plaintiffs have shown an overriding interest supporting their anonymity and sealing to prevent disclosed information that could lead to their identifications, as to their own private genetic and medical information, which outweighs any public right to access such private information. While the Complaint alleges involvement of others, the Prayer focuses upon relief individual to Plaintiffs. (See, e.g., Complaint, ¶ 100 (“Maximus Health concealed those facts intentionally and with intent to induce consumers, including Plaintiff B.H., to purchase its protocols.”).) Plaintiffs are not obligated to seek relief in the prayer on behalf of the public. Lawsuits under Civil Code section 1780 can involve availability of private or public remedies without necessarily requiring both. (E.g., Maldonado v. Fast Auto Loans, Inc. (2021) 60 Cal.App.5th 710, 717 [“‘public injunctive relief, i.e., injunctive relief that has the primary purpose and effect of prohibiting unlawful acts that threaten future injury to the general public,’ is among ‘the statutory remedies available for a violation of’ the CLRA,...”].) And the public would not need to know Plaintiffs’ identities in order to learn about Defendants’ alleged conduct in relation to themselves or others.